

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

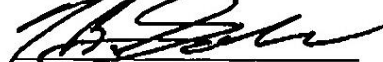
No. 1

☐ COMMITTEE AMENDMENT

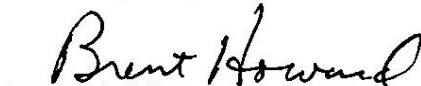
(Date)

I move to amend House Bill No. 4421 by substituting the attached floor substitute (Request #4012) for the title, enacting clause and entire body of the measure.

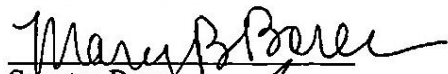
Submitted by:


Senator Gollihare

I hereby grant permission for the floor substitute to be adopted.

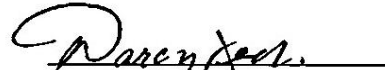

Senator Howard, Chair (required)


Senator Gollihare

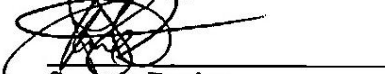

Senator Boren


Senator Brooks


Senator Paxton, President Pro Tempore


Senator Jech


Senator Jett

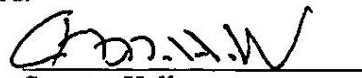

Senator Rosino

Senator Standridge

Senator Daniels, Majority Floor
Leader

Note: Judiciary committee majority requires five (5) members' signatures.

I hereby grant permission for the floor substitute to be adopted.


Senator Hall
Appropriations Committee Chair

Gollihare-DC-FS-HB4421
4/29/2026 7:03 PM

(Floor Amendments Only)

Date and Time Filed: 4-29-26 8:11pm KG

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 4421

By: Hilbert, Hefner,
Provenzano, West (Josh),
Manger, Williams, Banning,
and Turner of the House

and

Gollihare, Gillespie, and
Prieto of the Senate

FLOOR SUBSTITUTE

[children - Oklahoma Children's Code - Leo's Law -
safety analysis - drug screening - Department of
Human Services - referral to law enforcement agency -
costs - Child Welfare Fentanyl Testing Revolving Fund
- annual report - child endangerment - penalties -
noncodification - codification - effective date]

~~BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:~~

SECTION 1. NEW LAW A new section of law not to be
codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as "Leo's Law".

SECTION 2. AMENDATORY 10A O.S. 2021, Section 1-1-105, as
amended by Section 1, Chapter 375, O.S.L. 2025 (10A O.S. Supp. 2025,
Section 1-1-105), is amended to read as follows:

1 Section 1-1-105. When used in the Oklahoma Children's Code,
2 unless the context otherwise requires:

3 1. "Abandonment" means:

- 4 a. the willful intent by words, actions, or omissions not
5 to return for a child,
- 6 b. the failure to maintain a significant parental
7 relationship with a child through visitation or
8 communication in which incidental or token visits or
9 communication are not considered significant, or
- 10 c. the failure to respond to notice of deprived
11 proceedings;

12 2. "Abuse" means harm or threatened harm to the health, safety,
13 or welfare of a child by a person responsible for the child's
14 health, safety, or welfare, including, but not limited to,
15 nonaccidental physical or mental injury, sexual abuse, or sexual
16 exploitation. Provided, however, that nothing contained in the
17 Oklahoma Children's Code shall prohibit any parent from using
18 ordinary force as a means of discipline including, but not limited
19 to, spanking, switching, or paddling.

- 20 a. "Harm or threatened harm to the health, safety, or
21 welfare of a child" means any real or threatened
22 physical, mental, or emotional injury or damage to the
23 body or mind that is not accidental including, but not
24

1 limited to, sexual abuse, sexual exploitation,
2 neglect, or dependency.

3 b. "Sexual abuse" includes but is not limited to rape,
4 incest, and lewd or indecent acts or proposals made to
5 a child, as defined by law, by a person responsible
6 for the health, safety, or welfare of the child.

7 c. "Sexual exploitation" includes but is not limited to
8 allowing, permitting, encouraging, or forcing a child
9 to engage in prostitution, as defined by law, by any
10 person eighteen (18) years of age or older or by a
11 person responsible for the health, safety, or welfare
12 of a child, or allowing, permitting, encouraging, or
13 engaging in the lewd, obscene, or pornographic, as
14 defined by law, photographing, filming, or depicting
15 of a child in those acts by a person responsible for
16 the health, safety, and welfare of the child;

17 3. "Adjudication" means a finding by the court that the
18 allegations in a petition alleging that a child is deprived are
19 supported by a preponderance of the evidence;

20 4. "Adjudicatory hearing" means a hearing by the court as
21 provided by Section 1-4-601 of this title;

22 5. "Age-appropriate or developmentally appropriate" means:

23 a. activities or items that are generally accepted as
24 suitable for children of the same age or level of

1 maturity or that are determined to be developmentally
2 appropriate for a child, based on the development of
3 cognitive, emotional, physical, and behavioral
4 capacities that are typical for an age or age group,
5 and

6 b. in the case of a specific child, activities or items
7 that are suitable for that child based on the
8 developmental stages attained by the child with
9 respect to the cognitive, emotional, physical, and
10 behavioral capacities of the specific child.

11 In the event that any age-related activities have implications
12 relative to the academic curriculum of a child, nothing in this
13 paragraph shall be construed to authorize an officer or employee of
14 the federal government to mandate, direct, or control a state or
15 local educational agency, or the specific instructional content,
16 academic achievement standards and assessments, curriculum, or
17 program of instruction of a school;

18 6. "Assessment" means a comprehensive review of child safety
19 and evaluation of family functioning and protective capacities that
20 is conducted in response to a child abuse or neglect referral that
21 does not allege a serious and immediate safety threat to a child;

22 7. "Behavioral health" means mental health, substance abuse, or
23 co-occurring mental health and substance abuse diagnoses, and the
24

continuum of mental health, substance abuse, or co-occurring mental health and substance abuse treatment;

8. "Child" means any unmarried person under eighteen (18) years of age;

9. "Child advocacy center" means a center and the multidisciplinary child abuse team of which it is a member that is accredited by the National Children's Alliance or that is completing a sixth year of reaccreditation. Child advocacy centers shall be classified, based on the child population of a district attorney's district, as follows:

- a. nonurban centers in districts with child populations that are less than sixty thousand (60,000), and
- b. mid-level nonurban centers in districts with child populations equal to or greater than sixty thousand (60,000), but not including Oklahoma and Tulsa Counties;

10. "Child with a disability" means any child who has a physical or mental impairment which substantially limits one or more of the major life activities of the child, or who is regarded as having such an impairment by a competent medical professional;

11. "Child-placing agency" means an agency that arranges for or places a child in a foster family home, family-style living program, group home, adoptive home, or a successful adulthood program;

1 12. "Children's emergency resource center" means a community-
2 based program that may provide emergency care and a safe and
3 structured homelike environment or a host home for children
4 providing food, clothing, shelter and hygiene products to each child
5 served; after-school tutoring; counseling services; life-skills
6 training; transition services; assessments; family reunification;
7 respite care; transportation to or from school, doctors'
8 appointments, visitations and other social, school, court or other
9 activities when necessary; and a stable environment for children in
10 crisis who are in custody of the Department of Human Services if
11 permitted under the Department's policies and regulations, or who
12 have been voluntarily placed by a parent or custodian during a
13 temporary crisis;

14 13. "Community-based services" or "community-based programs"
15 means services or programs which maintain community participation or
16 supervision in their planning, operation, and evaluation.
17 Community-based services and programs may include, but are not
18 limited to, emergency shelter, crisis intervention, group work, case
19 supervision, job placement, recruitment and training of volunteers,
20 consultation, medical, educational, home-based services, vocational,
21 social, preventive and psychological guidance, training, counseling,
22 early intervention and diversionary substance abuse treatment,
23 sexual abuse treatment, transitional living, independent living, and
24 other related services and programs;

1 14. "Concurrent permanency planning" means, when indicated, the
2 implementation of two plans for a child entering foster care. One
3 plan focuses on reuniting the parent and child; the other seeks to
4 find a permanent out-of-home placement for the child with both plans
5 being pursued simultaneously;

6 15. "Court-appointed special advocate" or "CASA" means a
7 responsible adult volunteer who has been trained and is supervised
8 by a court-appointed special advocate program recognized by the
9 court, and when appointed by the court, serves as an officer of the
10 court in the capacity as a guardian ad litem;

11 16. "Court-appointed special advocate program" means an
12 organized program, administered by either an independent, not-for-
13 profit corporation, a dependent project of an independent, not-for-
14 profit corporation or a unit of local government, which recruits,
15 screens, trains, assigns, supervises and supports volunteers to be
16 available for appointment by the court as guardians ad litem;

17 17. "Custodian" means an individual other than a parent, legal
18 guardian or Indian custodian, to whom legal custody of the child has
19 been awarded by the court. As used in this title, the term
20 custodian shall not mean the Department of Human Services;

21 18. "Day treatment" means a nonresidential program which
22 provides intensive services to a child who resides in the child's
23 own home, the home of a relative, a group home, a foster home, or a
24

1 residential child care facility. Day treatment programs include,
2 but are not limited to, educational services;

3 19. "Department" means the Department of Human Services;

4 20. "Dependency" means a child who is homeless or without
5 proper care or guardianship through no fault of his or her parent,
6 legal guardian, or custodian;

7 21. "Deprived child" means a child:

8 a. who is for any reason destitute, homeless, or
9 abandoned,

10 b. who does not have the proper parental care or
11 guardianship,

12 c. who has been abused or neglected or is dependent,

13 d. whose home is an unfit place for the child by reason
14 of depravity on the part of the parent or legal
15 guardian of the child, or other person responsible for
16 the health or welfare of the child,

17 e. who is a child in need of special care and treatment
18 because of the child's physical or mental condition,
19 and the child's parents, legal guardian, or other
20 custodian is unable or willfully fails to provide such
21 special care and treatment. As used in this
22 paragraph, a child in need of special care and
23 treatment includes, but is not limited to, a child who
24 at birth tests positive for alcohol or a controlled

1 dangerous substance and who, pursuant to a drug or
2 alcohol screen of the child and an assessment of the
3 parent, is determined to be at risk of harm or
4 threatened harm to the health, safety, or welfare of a
5 child,

6 f. who is a child with a disability deprived of the
7 nutrition necessary to sustain life or of the medical
8 treatment necessary to remedy or relieve a life-
9 threatening medical condition in order to cause or
10 allow the death of the child if such nutrition or
11 medical treatment is generally provided to similarly
12 situated children without a disability or children
13 with disabilities; provided that no medical treatment
14 shall be necessary if, in the reasonable medical
15 judgment of the attending physician, such treatment
16 would be futile in saving the life of the child,

17 g. who, due to improper parental care and guardianship,
18 is absent from school as specified in Section 10-106
19 of Title 70 of the Oklahoma Statutes, if the child is
20 subject to compulsory school attendance,

21 h. whose parent, legal guardian or custodian for good
22 cause desires to be relieved of custody,

23 i. who has been born to a parent whose parental rights to
24 another child have been involuntarily terminated by

1 the court and the conditions which led to the making
2 of the finding, which resulted in the termination of
3 the parental rights of the parent to the other child,
4 have not been corrected, or

5 j. whose parent, legal guardian, or custodian has
6 subjected another child to abuse or neglect or has
7 allowed another child to be subjected to abuse or
8 neglect and is currently a respondent in a deprived
9 proceeding.

10 Nothing in the Oklahoma Children's Code shall be construed to
11 mean a child is deprived for the sole reason the parent, legal
12 guardian, or person having custody or control of a child, in good
13 faith, selects and depends upon spiritual means alone through
14 prayer, in accordance with the tenets and practice of a recognized
15 church or religious denomination, for the treatment or cure of
16 disease or remedial care of such child.

17 Evidence of material, educational or cultural disadvantage as
18 compared to other children shall not be sufficient to prove that a
19 child is deprived; the state shall prove that the child is deprived
20 as defined pursuant to this title.

21 Nothing contained in this paragraph shall prevent a court from
22 immediately assuming custody of a child and ordering whatever action
23 may be necessary, including medical treatment, to protect the
24 child's health or welfare;

1 22. "Dispositional hearing" means a hearing by the court as
2 provided by Section 1-4-706 of this title;

3 23. "Drug-endangered child" means a child who is exposed, or is
4 at risk of being exposed, to fentanyl or fentanyl analogs through
5 possession, use, distribution, manufacture, or cultivation by a
6 person responsible for the health, safety, or welfare of the child,
7 or a child who is at risk of suffering physical, psychological or
8 sexual harm as a result of the use, possession, distribution,
9 manufacture or cultivation of controlled substances, or the attempt
10 of any of these acts, by a person responsible for the health, safety
11 or welfare of the child, as defined in this section. This term
12 includes circumstances wherein the substance abuse of the person
13 responsible for the health, safety or welfare of the child
14 interferes with that person's ability to parent and provide a safe
15 and nurturing environment for the child;

16 24. "Emergency custody" means the custody of a child prior to
17 adjudication of the child following issuance of an order of the
18 district court pursuant to Section 1-4-201 of this title or
19 following issuance of an order of the district court pursuant to an
20 emergency custody hearing, as specified by Section 1-4-203 of this
21 title;

22 25. "Facility" means a place, an institution, a building or
23 part thereof, a set of buildings, or an area whether or not
24

1 enclosing a building or set of buildings used for the lawful custody
2 and treatment of children;

3 26. "Failure to protect" means failure to take reasonable
4 action to remedy or prevent child abuse or neglect, and includes the
5 conduct of a nonabusing parent or guardian who knows the identity of
6 the abuser or the person neglecting the child, but lies, conceals or
7 fails to report the child abuse or neglect or otherwise take
8 reasonable action to end the abuse or neglect;

9 27. "Family-style living program" means a residential program
10 providing sustained care and supervision to residents in a homelike
11 environment not located in a building used for commercial activity;

12 28. "Foster care" or "foster care services" means continuous
13 twenty-four-hour care and supportive services provided for a child
14 in foster placement including, but not limited to, the care,
15 supervision, guidance, and rearing of a foster child by the foster
16 parent;

17 29. "Foster family home" means the private residence of a
18 foster parent who provides foster care services to a child. Such
19 term shall include a nonkinship foster family home, a therapeutic
20 foster family home, or the home of a relative or other kinship care
21 home;

22 30. "Foster parent eligibility assessment" includes a criminal
23 background investigation including, but not limited to, a national
24 criminal history records search based upon the submission of

1 fingerprints, home assessments, and any other assessment required by
2 the Department of Human Services, the Office of Juvenile Affairs, or
3 any child-placing agency pursuant to the provisions of the Oklahoma
4 Child Care Facilities Licensing Act;

5 31. "Guardian ad litem" means a person appointed by the court
6 pursuant to the provisions of Section 1-4-306 of this title having
7 those duties and responsibilities as set forth in that section. The
8 term guardian ad litem shall refer to a court-appointed special
9 advocate as well as to any other person appointed pursuant to the
10 provisions of Section 1-4-306 of this title to serve as a guardian
11 ad litem;

12 32. "Guardian ad litem of the estate of the child" means a
13 person appointed by the court to protect the property interests of a
14 child pursuant to Section 1-8-108 of this title;

15 33. "Group home" means a residential facility licensed by the
16 Department to provide full-time care and community-based services
17 for more than five but fewer than thirteen children;

18 34. "Harm or threatened harm to the health or safety of a
19 child" means any real or threatened physical, mental, or emotional
20 injury or damage to the body or mind that is not accidental
21 including, but not limited to, sexual abuse, sexual exploitation,
22 neglect, or dependency;

23 35. "Heinous and shocking abuse" includes, but is not limited
24 to, aggravated physical abuse that results in serious bodily,

1 mental, or emotional injury. "Serious bodily injury" means injury
2 that involves:

- 3 a. a substantial risk of death,
- 4 b. extreme physical pain,
- 5 c. protracted disfigurement,
- 6 d. a loss or impairment of the function of a body member,
7 organ, or mental faculty,
- 8 e. an injury to an internal or external organ or the
9 body,
- 10 f. a bone fracture,
- 11 g. sexual abuse or sexual exploitation,
- 12 h. chronic abuse including, but not limited to, physical,
13 emotional, or sexual abuse, or sexual exploitation
14 which is repeated or continuing,
- 15 i. torture that includes, but is not limited to,
16 inflicting, participating in or assisting in
17 inflicting intense physical or emotional pain upon a
18 child repeatedly over a period of time for the purpose
19 of coercing or terrorizing a child or for the purpose
20 of satisfying the craven, cruel, or prurient desires
21 of the perpetrator or another person, or
- 22 j. any other similar aggravated circumstance;

23 36. "Heinous and shocking neglect" includes, but is not limited
24 to:

- a. chronic neglect that includes, but is not limited to,
a persistent pattern of family functioning in which
the caregiver has not met or sustained the basic needs
of a child which results in harm to the child,
- b. neglect that has resulted in a diagnosis of the child
as a failure to thrive,
- c. an act or failure to act by a parent that results in
the death or near death of a child or sibling, serious
physical or emotional harm, sexual abuse, or sexual
exploitation, or presents an imminent risk of serious
harm to a child, or
- d. any other similar aggravating circumstance;

37. "Individualized service plan" means a document written pursuant to Section 1-4-704 of this title that has the same meaning as "service plan" or "treatment plan" where those terms are used in the Oklahoma Children's Code;

38. "Infant" means a child who is twelve (12) months of age or younger;

39. "Institution" means a residential facility offering care and treatment for more than twenty residents;

40. a. "Investigation" means a response to an allegation of abuse or neglect that involves a serious and immediate threat to the safety of the child, making it necessary to determine:

1 (1) the current safety of a child and the risk of
2 subsequent abuse or neglect, and

3 (2) whether child abuse or neglect occurred and
4 whether the family needs prevention- and
5 intervention-related services.

6 b. Investigation results in a written response stating
7 one of the following findings:

8 (1) "substantiated" means the Department has
9 determined, after an investigation of a report of
10 child abuse or neglect and based upon some
11 credible evidence, that child abuse or neglect
12 has occurred. When child abuse or neglect is
13 substantiated, the Department may recommend:

14 (a) court intervention if the Department finds
15 the health, safety, or welfare of the child
16 is threatened, or

17 (b) child abuse and neglect prevention- and
18 intervention-related services for the child,
19 parents or persons responsible for the care
20 of the child if court intervention is not
21 determined to be necessary,

22 (2) "unsubstantiated" means the Department has
23 determined, after an investigation of a report of
24 child abuse or neglect, that insufficient

evidence exists to fully determine whether child abuse or neglect has occurred. If child abuse or neglect is unsubstantiated, the Department may recommend, when determined to be necessary, that the parents or persons responsible for the care of the child obtain child abuse and neglect prevention- and intervention-related services, or

(3) "ruled out" means a report in which a child protective services specialist has determined, after an investigation of a report of child abuse or neglect, that no child abuse or neglect has occurred;

41. "Kinship care" means full-time care of a child by a kinship relation;

42. "Kinship guardianship" means a permanent guardianship as defined in this section;

43. "Kinship relation" or "kinship relationship" means relatives, stepparents, or other responsible adults who have a bond or tie with a child or to whom has been ascribed a family relationship role with the child's parents or the child; provided, however, in cases where the Indian Child Welfare Act applies, the definitions contained in 25 U.S.C., Section 1903 shall control;

1 44. "Mental health facility" means a mental health or substance
2 abuse treatment facility as defined by the Inpatient Mental Health
3 and Substance Abuse Treatment of Minors Act;

4 45. "Minor" means the same as the term child as defined in this
5 section;

6 46. "Minor in need of treatment" means a child in need of
7 mental health or substance abuse treatment as defined by the
8 Inpatient Mental Health and Substance Abuse Treatment of Minors Act;

9 47. "Multidisciplinary child abuse team" means any team
10 established pursuant to Section 1-9-102 of this title of three or
11 more persons who are trained in the prevention, identification,
12 investigation, prosecution, and treatment of physical and sexual
13 child abuse and who are qualified to facilitate a broad range of
14 prevention- and intervention-related services and services related
15 to child abuse. For purposes of this definition, "freestanding"
16 means a team not used by a child advocacy center for its
17 accreditation;

18 48. "Near death" means a child is in serious or critical
19 condition, as certified by a physician, as a result of abuse or
20 neglect;

21 49. a. "Neglect" means:

- 22 (1) the failure or omission to provide any of the
23 following:
24

- (a) adequate nurturance and affection, food, clothing, shelter, sanitation, hygiene, or appropriate education,
- (b) medical, dental, or behavioral health care,
- (c) supervision or appropriate caretakers to protect the child from harm or threatened harm of which any reasonable and prudent person responsible for the child's health, safety or welfare would be aware, or
- (d) special care made necessary for the child's health and safety by the physical or mental condition of the child,

(2) the failure or omission to protect a child from exposure to any of the following:

- (a) the use, possession, sale, or manufacture of illegal drugs,
- (b) illegal activities, or
- (c) sexual acts or materials that are not age-appropriate, or

(3) abandonment.

b. Neglect shall not mean a child who engages in independent activities, except if the person responsible for the child's health, safety or welfare willfully disregards any harm or threatened harm to

1 the child, given the child's level of maturity,
2 physical condition or mental abilities. Such
3 independent activities include but are not limited to:

- 4 (1) traveling to and from school including by
5 walking, running or bicycling,
- 6 (2) traveling to and from nearby commercial or
7 recreational facilities,
- 8 (3) engaging in outdoor play,
- 9 (4) remaining at home unattended for a reasonable
10 amount of time,
- 11 (5) remaining in a vehicle if the temperature inside
12 the vehicle is not or will not become dangerously
13 hot or cold, except under the conditions
14 described in Section 11-1119 of Title 47 of the
15 Oklahoma Statutes, or
- 16 (6) engaging in similar activities alone or with
17 other children.

18 Nothing in this paragraph shall be construed to mean a child is
19 abused or neglected for the sole reason the parent, legal guardian
20 or person having custody or control of a child, in good faith,
21 selects and depends upon spiritual means alone through prayer, in
22 accordance with the tenets and practice of a recognized church or
23 religious denomination, for the treatment or cure of disease or
24 remedial care of such child. Nothing contained in this paragraph

1 shall prevent a court from immediately assuming custody of a child,
2 pursuant to the Oklahoma Children's Code, and ordering whatever
3 action may be necessary, including medical treatment, to protect the
4 child's health or welfare;

5 50. "Permanency hearing" means a hearing by the court pursuant
6 to Section 1-4-811 of this title;

7 51. "Permanent custody" means the court-ordered custody of an
8 adjudicated deprived child when a parent-child relationship no
9 longer exists due to termination of parental rights or due to the
10 death of a parent or parents;

11 52. "Permanent guardianship" means a judicially created
12 relationship between a child, a kinship relation of the child, or
13 other adult established pursuant to the provisions of Section 1-4-
14 709 of this title;

15 53. "Person responsible for a child's health, safety, or
16 welfare" includes a parent; a legal guardian; custodian; a foster
17 parent; a person eighteen (18) years of age or older with whom the
18 child's parent cohabitates or any other adult residing in the home
19 of the child; an agent or employee of a public or private
20 residential home, institution, facility or day treatment program as
21 defined in Section 175.20 of Title 10 of the Oklahoma Statutes; or
22 an owner, operator, or employee of a child care facility as defined
23 by Section 402 of Title 10 of the Oklahoma Statutes;

1 54. "Plan of safe care" means a plan developed for an infant
2 with Neonatal Abstinence Syndrome or a Fetal Alcohol Spectrum
3 Disorder upon release from the care of a health care provider that
4 addresses the health and substance use treatment needs of the infant
5 and mother or caregiver;

6 55. "Protective custody" means custody of a child taken by a
7 law enforcement officer or designated employee of the court without
8 a court order;

9 56. "Putative father" means an alleged father as that term is
10 defined in Section 7700-102 of Title 10 of the Oklahoma Statutes;

11 57. "Qualified residential treatment program" means a program
12 that:

- 13 a. has a trauma-informed treatment model that is designed
14 to address the needs including clinical needs as
15 appropriate, of children with serious emotional or
16 behavioral disorders or disturbances and, with respect
17 to a child, is able to implement the treatment
18 identified for the child from a required assessment,
- 19 b. has registered or licensed nursing staff and other
20 licensed clinical staff who:
 - 21 (1) provide care within the scope of their practice
22 as defined by the laws of this state,

(2) are on-site according to the treatment model referred to in subparagraph a of this paragraph, and

(3) are available twenty-four (24) hours a day and seven (7) days a week,

c. to the extent appropriate, and in accordance with the child's best interest, facilitates participation of family members in the child's treatment program,

d. facilitates outreach to the family members of the child including siblings, documents how the outreach is made including contact information, and maintains contact information for any known biological family of the child,

e. documents how family members are integrated into the treatment process for the child including post-discharge, and how sibling connections are maintained,

f. provides discharge planning and family-based aftercare support for at least six (6) months post-discharge, and

g. is licensed and accredited by any of the following independent, not-for-profit organizations:

(1) the Commission on Accreditation of Rehabilitation Facilities (CARF),

(2) the Joint Commission,

1 (3) the Council on Accreditation (COA), or

2 (4) any other federally approved independent, not-
3 for-profit accrediting organization;

4 58. "Reasonable and prudent parent standard" means the standard
5 characterized by careful and sensible parental decisions that
6 maintain the health, safety, and best interests of a child while at
7 the same time encouraging the emotional and developmental growth of
8 the child. This standard shall be used by the child's caregiver
9 when determining whether to allow a child to participate in
10 extracurricular, enrichment, cultural, and social activities. For
11 purposes of this definition, the term "caregiver" means a foster
12 parent with whom a child in foster care has been placed, a
13 representative of a group home where a child has been placed or a
14 designated official for a residential child care facility where a
15 child in foster care has been placed;

16 59. "Relative" means a grandparent, great-grandparent, brother
17 or sister of whole or half blood, aunt, uncle or any other person
18 related to the child;

19 60. "Residential child care facility" means a twenty-four-hour
20 residential facility where children live together with or are
21 supervised by adults who are not their parents or relatives;

22 61. "Review hearing" means a hearing by the court pursuant to
23 Section 1-4-807 of this title;

1 62. "Risk" means the likelihood that an incident of child abuse
2 or neglect will occur in the future;

3 63. "Safety threat" means the threat of serious harm due to
4 child abuse or neglect occurring in the present or in the very near
5 future and without the intervention of another person, a child would
6 likely or in all probability sustain severe or permanent disability
7 or injury, illness, or death;

8 64. "Safety analysis" means action taken by the Department in
9 response to a report of alleged child abuse or neglect that may
10 include an assessment or investigation based upon an analysis of the
11 information received according to priority guidelines and other
12 criteria adopted by the Department;

13 65. "Safety evaluation" means evaluation of a child's situation
14 by the Department using a structured, evidence-based tool to
15 determine if the child is subject to a safety threat;

16 66. "Secure facility" means a facility which is designed and
17 operated to ensure that all entrances and exits from the facility
18 are subject to the exclusive control of the staff of the facility,
19 whether or not the juvenile being detained has freedom of movement
20 within the perimeter of the facility, or a facility which relies on
21 locked rooms and buildings, fences, or physical restraint in order
22 to control behavior of its residents;

1 67. "Sibling" means a biologically or legally related brother
2 or sister of a child. This includes an individual who satisfies at
3 least one of the following conditions with respect to a child:

- 4 a. the individual is considered by state law to be a
5 sibling of the child, or
- 6 b. the individual would have been considered a sibling
7 under state law but for a termination or other
8 disruption of parental rights, such as the death of a
9 parent;

10 68. "Specialized foster care" means foster care provided to a
11 child in a foster home or agency-contracted home which:

- 12 a. has been certified by the Developmental Disabilities
13 Services Division of the Department of Human Services,
- 14 b. is monitored by the Division, and
- 15 c. is funded through the Home and Community-Based Waiver
16 Services Program administered by the Division;

17 69. "Successful adulthood program" means a program specifically
18 designed to assist a child to enhance those skills and abilities
19 necessary for successful adult living. A successful adulthood
20 program may include, but shall not be limited to, such features as
21 minimal direct staff supervision, and the provision of supportive
22 services to assist children with activities necessary for finding an
23 appropriate place of residence, completing an education or

1 vocational training, obtaining employment, or obtaining other
2 similar services;

3 70. "Temporary custody" means court-ordered custody of an
4 adjudicated deprived child;

5 71. "Therapeutic foster family home" means a foster family home
6 which provides specific treatment services, pursuant to a
7 therapeutic foster care contract, which are designed to remedy
8 social and behavioral problems of a foster child residing in the
9 home;

10 72. "Time-limited reunification services" means reunification
11 services provided only during the period of fifteen (15) months that
12 begins on the date the child is considered to have entered foster
13 care;

14 73. "Trafficking in persons" means sex trafficking or severe
15 forms of trafficking in persons as described in Section 7102 of
16 Title 22 of the United States Code:

17 a. "sex trafficking" means the recruitment, harboring,
18 transportation, provision, obtaining, patronizing or
19 soliciting of a person for the purpose of a commercial
20 sex act, and

21 b. "severe forms of trafficking in persons" means:

22 (1) sex trafficking in which a commercial sex act is
23 induced by force, fraud, or coercion, or in which
24

1 the person induced to perform such act has not
2 attained eighteen (18) years of age, or

3 (2) the recruitment, harboring, transportation,
4 provision, obtaining, patronizing or soliciting
5 of a person for labor or services, through the
6 use of force, fraud, or coercion for the purpose
7 of subjection to involuntary servitude, peonage,
8 debt bondage, or slavery;

9 74. "Transitional living program" means a residential program
10 that may be attached to an existing facility or operated solely for
11 the purpose of assisting children to develop the skills and
12 abilities necessary for successful adult living. The program may
13 include, but shall not be limited to, reduced staff supervision,
14 vocational training, educational services, employment and employment
15 training, and other appropriate independent living skills training
16 as a part of the transitional living program; and

17 75. "Voluntary foster care placement" means the temporary
18 placement of a child by the parent, legal guardian or custodian of
19 the child in foster care pursuant to a signed placement agreement
20 between the Department or a child-placing agency and the child's
21 parent, legal guardian or custodian.

22 SECTION 3. AMENDATORY 10A O.S. 2021, Section 1-2-102, as
23 amended by Section 2, Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025,
24 Section 1-2-102), is amended to read as follows:

1 Section 1-2-102. A. 1. Upon receipt of a report that a child
2 may be abused, neglected or drug-endangered, the Department of Human
3 Services shall conduct a safety analysis.

4 2. The Department may employ or contract with active or retired
5 social work, medical and law enforcement professionals who shall be
6 strategically placed throughout the state to:

7 a. provide investigation support and to assist
8 caseworkers with assessment decisions and intervention
9 activities,

10 b. serve as consultants to caseworkers in all aspects of
11 their duties, and

12 c. designate persons who shall act as liaisons within the
13 Department whose primary functions are to develop
14 relationships with local law enforcement agencies and
15 courts.

16 3. The Department shall forward a report of its assessment or
17 investigation and findings to any district attorney's office which
18 may have jurisdiction to file a petition pursuant to Section 1-4-101
19 of this title.

20 4. The Department shall determine the military status of
21 parents whose children are subject to abuse or neglect. If the
22 Department determines that a parent or guardian is currently serving
23 on active duty in the United States military, the Department shall
24 notify a United States Department of Defense family advocacy program

1 that there is an investigation into the parent or guardian. The
2 Department shall forward a report of its assessment or investigation
3 and findings to the appropriate military law enforcement entity.

4 5. Whenever the Department determines there is a child that
5 meets the definition of a "drug-endangered child", as defined in
6 Section 1-1-105 of this title, or a child has been diagnosed with
7 fetal alcohol syndrome and the referral is accepted for
8 investigation, the Department shall conduct an investigation of the
9 allegations and shall not limit the evaluation of the circumstances
10 to an assessment.

11 6. Whenever the Department determines an infant has been
12 diagnosed with Neonatal Abstinence Syndrome or a Fetal Alcohol
13 Spectrum Disorder, but the referral is not accepted for
14 investigation, the Department shall develop a plan of safe care that
15 addresses both the infant and affected family member or caregiver.
16 The plan of safe care shall address, at a minimum, the health and
17 substance use treatment needs of the infant and affected family
18 member or caregiver.

19 B. 1. If the Department determines that a child meets the
20 definition of a "drug-endangered child", and the referral is
21 accepted for investigation, the Department shall conduct a safety
22 analysis and shall attempt to acquire consent for an immediate drug
23 screening for any parent, guardian, or caregiver, including, but not
24 limited to, methamphetamine production or use, opioid exposure, or

1 any indication of fentanyl presence. If the parent, guardian, or
2 caregiver refuses to consent to a drug screening and substance use
3 is suspected or confirmed following a safety analysis, the
4 Department shall notify a district attorney within seventy-two (72)
5 hours to request a court order compelling the parent, guardian, or
6 caregiver to submit to a drug screening. If the parent, guardian,
7 or caregiver refuses to consent to a drug screening and the court
8 orders the parent, guardian, or caregiver to submit to a drug
9 screening, the court shall also order such parent, guardian, or
10 caregiver to pay the drug screening cost. All drug screenings shall
11 include mandatory fentanyl testing.

12 2. For any case in which a child is determined to be drug-
13 endangered, drug testing shall occur:

14 a. at intake for investigations,

15 b. as part of ongoing monitoring in any open deprived
16 case where drug use or drug endangerment is at issue,
17 and

18 c. prior to any reunification.

19 3. If, upon receipt of a report alleging that a child is drug-
20 endangered, the Department determines that drug activity is
21 indicated or that the child meets the definition of a "drug-
22 endangered child", the Department shall immediately make a referral,
23 either verbally or in writing, to the appropriate local law
24

1 enforcement agency for the purpose of conducting a possible criminal
2 investigation.

3 C. 1. If, upon receipt of a report alleging abuse or neglect
4 or during the assessment or investigation, the Department determines
5 that:

6 a. the alleged perpetrator is someone other than a person
7 responsible for the child's health, safety, or
8 welfare, and

9 b. the alleged abuse or neglect of the child does not
10 appear to be attributable to failure on the part of a
11 person responsible for the child's health, safety, or
12 welfare to provide protection for the child,

13 the Department shall immediately make a referral, in writing, to the
14 appropriate local law enforcement agency for the purpose of
15 conducting a possible criminal investigation. The Department shall
16 maintain a record of its transmission of each report to law
17 enforcement.

18 2. After making the referral to the law enforcement agency, the
19 Department shall not be responsible for further investigation
20 unless:

21 a. the Department has reason to believe the alleged
22 perpetrator is a parent of another child, not the
23 subject of the criminal investigation, or is otherwise
24

1 a person responsible for the health, safety, or
2 welfare of another child,

3 b. notice is received from a law enforcement agency that
4 it has determined the alleged perpetrator is a parent
5 of or a person responsible for the health, safety, or
6 welfare of another child not the subject of the
7 criminal investigation, or

8 c. the appropriate law enforcement agency requests the
9 Department to assist in the investigation. If funds
10 and personnel are available, as determined by the
11 Director of the Department or a designee, the
12 Department may assist law enforcement in interviewing
13 children alleged to be victims of physical or sexual
14 abuse.

15 3. If, upon receipt of a report alleging abuse or neglect or
16 during the assessment or investigation, the Department determines
17 that the alleged abuse or neglect of the child involves:

18 a. a child in the custody of the Office of Juvenile
19 Affairs, and

20 b. at the time of the alleged abuse or neglect, such
21 child was placed in a secure facility operated by the
22 Office of Juvenile Affairs, as defined by Section 2-1-
23 103 of this title,
24

1 the Department shall immediately make a referral, either verbally or
2 in writing, to the appropriate law enforcement agency for the
3 purpose of conducting a possible criminal investigation. After
4 making the referral to the law enforcement agency, the Department
5 shall not be responsible for further investigation.

6 ~~C.~~ D. 1. Any law enforcement agency receiving a referral as
7 provided in this section shall provide the Department with a copy of
8 the report of any investigation resulting from a referral from the
9 Department.

10 2. Whenever, in the course of any criminal investigation, a law
11 enforcement agency determines that there is cause to believe that a
12 child, other than a child in the custody of the Office of Juvenile
13 Affairs and placed in an Office of Juvenile Affairs secure juvenile
14 facility, may be abused or neglected by reason of the acts,
15 omissions, or failures on the part of a person responsible for the
16 health, safety, or welfare of the child, the law enforcement agency
17 shall immediately contact the Department for the purpose of an
18 investigation.

19 ~~D.~~ E. If, upon receipt of a report alleging abuse or neglect,
20 the Department determines that the family has been the subject of a
21 deprived petition, the Department shall conduct a thorough
22 investigation of the allegations and shall not limit the evaluation
23 of the circumstances to an assessment. In addition, if the family
24 has been the subject of three or more referrals, the Department

1 shall conduct a thorough investigation of the allegations and shall
2 not limit the evaluation of the circumstances to an assessment.

3 ~~E.~~ F. For the purposes of this section, "law enforcement" shall
4 include military law enforcement if the subject of an investigation
5 of abuse or neglect is currently serving in any branch of the United
6 States military.

7 ~~F.~~ G. The Department shall promulgate rules by January 1, 2027,
8 to implement the provisions of this section.

9 SECTION 4. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 10A of Title 1-4-717, unless
11 there is created a duplication in numbering, reads as follows:

12 A. The court may order the family, or a member of the family, a
13 guardian, or a caregiver who is subject to fentanyl testing under
14 this act to pay drug testing costs.

15 B. The Department of Human Services shall cover the cost when
16 the individual:

- 17 1. Is enrolled in a state or federal voucher program;
18 2. Receives qualifying public assistance; or
19 3. Demonstrates financial hardship via affidavit.

20 SECTION 5. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 10A of Title 1-4-718, unless
22 there is created a duplication in numbering, reads as follows:

23 A. There is hereby created in the State Treasury a revolving
24 fund for the Department of Human Services to be designated the

1 "Child Welfare Fentanyl Testing Revolving Fund". The fund shall be
2 a continuing fund, not subject to fiscal year limitations, and shall
3 consist of all proceeds from the fifty-dollar fee imposed pursuant
4 to paragraph 2 of subsection D of Section 852.1 of Title 21 of the
5 Oklahoma Statutes. All monies accruing to the credit of the fund
6 are hereby appropriated and may be budgeted and expended by the
7 Department for the purpose of offsetting drug testing costs of the
8 Department. Expenditures from the fund shall be made upon warrants
9 issued by the State Treasurer against claims filed as prescribed by
10 law with the Director of the Office of Management and Enterprise
11 Services for approval and payment.

12 B. The Department of Human Services shall electronically submit
13 an annual report by December 31 to the Speaker of the House of
14 Representatives and the President Pro Tempore of the Senate that
15 includes, but is not limited to, testing volumes, costs, positive
16 rates, and fund balance, including impacts on child safety outcomes.

17 SECTION 6. AMENDATORY 21 O.S. 2021, Section 852.1, as
18 amended by Section 23 of Enrolled Senate Bill No. 1627 of the 2nd
19 Session of the 60th Oklahoma Legislature, is amended to read as
20 follows:

21 Section 852.1. A. A person who is the parent, guardian, or
22 person having custody or control over a child as defined in Section
23 1-1-105 of Title 10A of the Oklahoma Statutes, commits child
24 endangerment when the person:

1 1. Knowingly permits physical or sexual abuse of a child;

2 2. Knowingly permits a child to be present at a location where
3 a controlled dangerous substance is being manufactured or attempted
4 to be manufactured as defined in Section 2-101 of Title 63 of the
5 Oklahoma Statutes;

6 3. Knowingly and willfully permits or causes a child under
7 eighteen (18) years of age to be placed in a situation where the
8 life, health, or safety of the child is endangered as described in
9 subsection B of this section;

10 4. Knowingly permits a child to be present in a vehicle when
11 the person knows or should have known that the operator of the
12 vehicle is impaired by or is under the influence of alcohol or
13 another intoxicating substance; or

14 ~~4.~~ 5. Is the driver, operator, or person in physical control of
15 a vehicle in violation of Section 11-902 of Title 47 of the Oklahoma
16 Statutes or impaired while transporting or having in the vehicle
17 such child or children.

18 However, it is an affirmative defense to this paragraph if the
19 person had a reasonable apprehension that any action to stop the
20 physical or sexual abuse or deny permission for the child to be in
21 the vehicle with an intoxicated person would result in substantial
22 bodily harm to the person or the child.

1 Nothing in this subsection shall prohibit the prosecution of a
2 person pursuant to the provisions of Section 11-902 or 11-904 of
3 Title 47 of the Oklahoma Statutes.

4 B. "Endangerment" includes, but is not limited to, exposing a
5 child to fentanyl or fentanyl analogs through possession, use,
6 distribution, manufacture, or cultivation.

7 C. The provisions of this section shall not apply to any
8 parent, guardian or other person having custody or control of a
9 child for the sole reason that the parent, guardian or other person
10 in good faith selects and depends upon spiritual means or prayer for
11 the treatment or cure of disease or remedial care for such child.
12 This subsection shall in no way limit or modify the protections
13 afforded said child in Section 852 of this title or Section 1-4-904
14 of Title 10A of the Oklahoma Statutes.

15 ~~C.~~ D. 1. Any person convicted of violating any provision of
16 this section shall be guilty of a Class B6 felony offense punishable
17 by imprisonment in the custody of the Department of Corrections for
18 a term of not more than four (4) years, or by a fine not exceeding
19 Five Thousand Dollars (\$5,000.00), or by both such fine and
20 imprisonment.

21 2. If fentanyl was present or detected in the endangerment that
22 led to the conviction, the person convicted shall be guilty of a
23 felony punishable by imprisonment in the custody of the Department
24 of Corrections for a term not to exceed five (5) years, or by a fine

1 not to exceed Five Thousand Dollars (\$5,000.00), or by both such
2 imprisonment and fine. Such person shall also pay a mandatory fee
3 of Fifty Dollars (\$50.00) to the State Treasury to be deposited in
4 the Child Welfare Fentanyl Testing Revolving Fund created in Section
5 5 of this act.

6 SECTION 7. NEW LAW A new section of law not to be
7 codified in the Oklahoma Statutes reads as follows:

8 The requirements of this act shall be carried out within
9 existing appropriations and designated funds, including the Child
10 Welfare Fentanyl Testing Revolving Fund created in Section 5 of this
11 act, and shall not require the Department of Human Services to
12 create new data systems or hire additional full-time employees.

13 SECTION 8. This act shall become effective January 1, 2027.
14

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